

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Vale	Team: Squad #06	CCRB Case #: 201710224	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Sunday, 12/10/2017 10:05 AM	Location of Incident: Lobby turnstiles area in the 96th Street / Broadway Subway Station	18 Mo. SOL 6/10/2019	Precinct: 24
Date/Time CV Reported Sun, 12/10/2017 1:28 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 12/10/2017 1:28 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Kirill Ostrovskiy	16731	955285	TB DT03

Officer(s)	Allegation	Investigator Recommendation
A . POM Kirill Ostrovskiy	Force: Police Officer Kirill Ostrovskiy used physical force against an individual.	A . Exonerated
B . POM Kirill Ostrovskiy	Off. Language: Police Officer Kirill Ostrovskiy made remarks to an individual based upon gender.	B . Substantiated
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]

Case Summary

On December 10, 2017, § 87(2)(b) filed this complaint via the Civilian Complaint Review Board website.

On December 10, 2017, at approximately 10:05 a.m., as § 87(2)(b) was entering the 96th Street and Broadway transit station in Manhattan, she observed PO Kirill Ostrovskiy of Transit District 3 interacting with a female individual on the mezzanine level. PO Ostrovskiy attempted to eject the individual from the station and she refused to comply. PO Ostrovskiy pushed the individual towards the turnstiles (**Allegation A: Force, exonerated**) while telling her to “get the fuck out of here you bitch” (**Allegation B: Offensive Language, substantiated**). The individual, who did not fall as a result of the push, exited the turnstiles and left the transit station.

§ 87(4-b), § 87(2)(g)

Video footage for this incident was obtained from the NYC Transit Authority (BR 01 – 05).

Findings and Recommendations

Allegation A – Force: Police Officer Kirill Ostrovskiy used physical force against an individual.

§ 87(2)(b) was consistent throughout all three statements provided to the CCRB (BR 06 – 08). She stated that as she entered into the transit station she overheard yelling. She then observed PO Ostrovskiy and a female individual standing at the mezzanine behind the turnstiles yelling at one another. PO Ostrovskiy attempted to escort the individual out of the station. However, the individual refused to comply and walked away from PO Ostrovskiy. § 87(2)(b) walked towards the turnstiles and stood by the entrance of the turnstiles while PO Ostrovskiy and the individual stood approximately one foot away from the turnstile exit. As the individual faced the turnstiles, PO Ostrovskiy placed his hands on the individual’s backs and pushed her out of the turnstiles. The individual did not fall as a result of the push.

§ 87(2)(b) a witness in this incident, was consistent with § 87(2)(b)’s testimony that the individual and PO Ostrovskiy were arguing with one another since the individual did not want to leave the transit station. Initially, § 87(2)(b) stated that PO Ostrovskiy shoved the individual. After reviewing video footage, § 87(2)(b) stated that PO Ostrovskiy guided the individual and did not shove her out of the turnstiles.

§ 87(2)(b) a § 87(2)(b) and witness to this incident, stated that PO Ostrovskiy was asked by an MTA cleaner to have the individual removed from the station. Since § 87(2)(b) was assigned as the booth attendant her attention was primarily focused on her customers and did not witness the incident in its entirety. § 87(2)(b) observed PO Ostrovskiy instruct the individual to leave the station and she did not comply. Since § 87(2)(b) was dealing with a customer she did not see if PO Ostrovskiy pushed the individual towards the turnstile.

The investigation was unable to identify the victim to obtain a statement from her regarding this incident (BR 09).

PO Ostrovskiy stated that as he stood on the mezzanine with the individual, he placed his hand on the individual's shoulders and guided her out of the station. He denied pushing the individual and added that the female did not fall as a result of him guiding her by the shoulders.

Video footage obtained for this incident (IA# 01 – 05) showed that the individual refused to exit the mezzanine by walking around the mezzanine as PO Ostrovskiy followed behind. As the individual faced the turnstiles, PO Ostrovskiy placed both arms on the individual's back and guided her out of the turnstiles. The individual did not complain to him that he pushed her.

Patrol Guide Procedure 212-20 states that members of service should use no more force than is necessary to effect the ejection, if passenger refuses to leave (BR 10).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation A be closed as **exonerated**.

Allegation B – Offensive Language: Police Officer Kirill Ostrovskiy spoke discourteously to an individual.

§ 87(2)(b) was consistent throughout all three statements provided to the CCRB that PO Ostrovskiy told the individual to “get out of here bitch.” § 87(2)(b) did not hear PO Ostrovskiy use any additional profanity towards the individual aside from the expletive “bitch.”

Initially, § 87(2)(b) stated that PO Ostrovskiy told the individual to “get out of here bitch.” He later stated that PO Ostrovskiy told the individual to “get the fuck out of here you bitch.”

§ 87(2)(b) stated that she did not overhear PO Ostrovskiy use any profanity towards the individual and added that the individual was the only she heard using profanity.

As previously stated, a statement was not obtained from the victim.

PO Ostrovskiy denied using any profanity towards the individual including the expletive “bitch” and “fuck.”

Patrol Guide Procedure 203-09 states that all uniformed members of the service must be courteous and respectful (BR 11).

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation B** be substantiated.

§ 87(4-b), § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (BR 12).
- PO Ostrovskiy has been a member-of-service for four years and this is the first CCRB complaint to which he has been a subject (see officer history).

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of February 20, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Squad No.: 6

Investigator: _____ Investigator Diana Vale _____
Signature Print Title & Name Date

Squad Leader: _____ Investigative Manager § 87(2)(b) [REDACTED] Peña _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date